



POLICE DEPARTMENT

April 3, 2012

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Wilfred Martinez
Tax Registry No. 924703
Transit District 1
Disciplinary Case No. 2011-3967

The above-named member of the Department appeared before me on December 15, 2011, charged with the following:

1. Said Police Officer Wilfred Martinez, while assigned to Transit District 33, on or about January 13, 2011, was discourteous to Lieutenant Francis Woods, tax# 916933, to wit: said Lieutenant instructed Police Officer Martinez to place an individual known to the Department under arrest and Police Officer Martinez responded by yelling "this is bullshit!", placing handcuffs on the individual and slamming the door to the arrest processing area.

P.G. 203-10, Page 1, Paragraph 5 - GENERAL REGULATIONS

The Department was represented by Jaime Moran, Esq., Department Advocate's Office, and Respondent was represented by John Tynan, Esq.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Guilty of that part of the charge that alleges that he was discourteous to Lieutenant Francis Woods by yelling "this is bullshit!"

COURTESY • PROFESSIONALISM • RESPECT

SUMMARY OF EVIDENCE PRESENTEDIntroduction

It is not disputed that on January 13, 2011, Respondent was on duty, assigned to Transit District 33, performing a 2315 hours to 0750 hours tour of duty assigned to a fixed post at the Broadway Junction subway station and that during Respondent's tour of duty a Train Ordered Maintenance Sweep (TOMS) operation, which was supervised by Lieutenant Francis Woods, was conducted on the northbound A train. It is further undisputed that during this TOMS Operation, Person A was a passenger in an A train which pulled into the station. Person A was seated in a stretched out manner with his feet up on the seating area and he was taking up more than one seat. Lieutenant Woods pointed out Person A and directed Respondent to get Person A to sit using one seat. Respondent tried to speak to Person A and when Person A did not respond, he nudged him with his hand. Lieutenant Woods then directed Respondent to escort Person A off of the train and onto the platform.

The Department's Case

The Department called Lieutenant Francis Woods and Sergeant Hector Suero as witnesses and offered the statement of Person A

Lieutenant Francis Woods

Lieutenant Woods testified that after Respondent escorted Person A off of the train and onto the platform, Respondent proceeded to walk Person A off of the platform and toward the exit of the station. As Respondent was walking Person A toward the front door,

Lieutenant Woods directed Respondent to take Person A into Transit District 33, which is located within the Broadway Junction subway station. A warrant check was performed on Person A which revealed that Person A was "a transit recidivist."

Lieutenant Woods testified that because Person A was a transit recidivist, he was obligated to have Person A arrested. Lieutenant Woods ordered Respondent to arrest Person A. Respondent started "yelling," "This is bullshit! This is cowardice! Are you ordering me to make this arrest?" Lieutenant Woods responded "yes." Respondent then began "yelling louder" and repeated his question, "Are you ordering me to make this arrest?" Lieutenant Woods again responded "yes," that he was ordering Respondent to arrest Person A. Respondent appeared nervous and tense. When Respondent made these statements, they were standing in front of the front desk. Sergeant Suero, the desk officer (DO), was behind the desk and Police Officer Blake, who was assigned as the telephone switchboard operator (TSO), was next to the desk. As Respondent began to handcuff Person A, Respondent repeated "this is bullshit." As Respondent began to walk the handcuffed Person A past Lieutenant Woods into the cell area, Respondent "screamed" at Lieutenant Woods to "move" and when Respondent reached the arrest processing room "he slams the door."

Lieutenant Woods testified that he wrote an entry about this incident into the Command Discipline Log and he reported Respondent's behavior to the commanding officer.

The Department offered five photos which depict the front desk area inside Transit District 33 [Department's Exhibit (DX) 2 A-E].

On cross examination, Lieutenant Woods agreed that Respondent had complied with his direction to tell Person A to take his feet off the subway car seat, his direction that Respondent remove Person A from the train, his direction that Respondent initiate a warrant check on Person A and his direction that Respondent bring Person A into Transit District 33. Lieutenant Woods confirmed that he did not request that the duty captain respond to Transit District 33. Lieutenant Woods agreed that this incident did not affect his ability to supervise any other officers assigned to Transit District 33. When Lieutenant Woods was asked if he was concerned about Respondent's mental state, he stated, "Possibly."

Sergeant Hector Suero

Sergeant Suero, who is presently assigned to Transit Kings Task Force, recalled that on January 13, 2011 at 0230 hours, he was behind the front desk of Transit District 33 because he was assigned as the DO. Seated nearby was Officer Blake who was assigned as the TSO. He recalled that Lieutenant Woods, Respondent and Police Officer Torres came quietly into the precinct with a male prisoner who was then seated on a bench in front of the desk.

He heard Lieutenant Woods tell either Respondent or Officer Torres to perform a name check on the male prisoner. He then heard Lieutenant Woods tell Respondent to place the male under arrest. He heard Respondent ask Lieutenant Woods, "You asking me to arrest this person?" Lieutenant Woods responded, "Yes." Respondent asked Lieutenant Woods, "Are you ordering me?" Lieutenant Woods responded, "Yes. I'm ordering you to arrest him." He then heard Respondent "yell" at Lieutenant Woods, "This is not why we became cops! This is bullshit! Do you feel good about yourself?"

He described Respondent as "confrontational." Lieutenant Woods did not respond. Respondent then told the male prisoner, who was still seated on the bench in front of the desk, to get up and Respondent then handcuffed him. The male prisoner "got a little excited" and exclaimed, "This is bullshit! Why am I getting arrested?" Sergeant Suero described Respondent as "a very decent individual." He has never had any problems with Respondent.

On cross-examination, he confirmed that as of January 13, 2011, he was new to Transit District 33 because he had only been assigned there for about four days. He did not see Respondent slam any door, he did not hear the door leading to the prisoner cells being slammed and he did not hear any other door being slammed.

The Statement of Person A

During a telephone interview of Person A conducted by Lieutenant Peter Rose on February 17, 2011 (DX 1), when Person A was asked if he recalled his arrest on January 13, 2011, he stated that because he "was pretty blitzed that night" he could not "remember much." He could not recall the name of the police officer who arrested him but that this officer had told him that he should not have been arrested and that he should only have been issued a summons. He remembered that the officer who arrested him yelled at his "boss" that "this is bullshit."

Respondent's Case

Respondent testified in his own behalf.

Respondent

Respondent testified that prior to January 13, 2011 he had made, at most, only one arrest of a passenger on a train for taking up more than one seat. About two months prior to January 13, 2011, Lieutenant Woods had approached him to discuss his low level of arrests for taking up more than one seat. Respondent recalled that he had explained to Lieutenant Woods that he did not believe that it was right to make such arrests because in most cases the people being arrested were either homeless or in need of assistance. Lieutenant Woods told him that he had "no problem with that." About a month later, they had a second conversation in which Lieutenant Woods stated that in performing TOMS operations he did not want "homeless sick people to be arrested."

Respondent testified that on January 13, 2011, when he entered the A train and approached Person A who was seated stretched out with his feet up and taking up more than one seat, he told Person A to sit up. When Person A did not respond, Respondent noticed that Person A was wearing earphones and dark sunglasses. That is why Respondent nudged Person A with his hand. Respondent testified that he complied with Lieutenant Woods' orders to remove Person A from the train and to obtain Person A ID. Respondent walked Person A over to the subway booth area. As Respondent was picking up his radio to begin the warrant check on Person A, Lieutenant Woods "snatched" Person A ID out of Respondent's hand and carried it into Transit District 33.

Shortly thereafter, Lieutenant Woods informed Respondent that Person A had a warrant as a "recidivist." When Respondent asked if he could eject Person A from the station, Lieutenant Woods told him that he had to arrest Person A. Respondent testified that he told Lieutenant Woods that he was "a little upset" and he asked Lieutenant Woods,

“Do we have to arrest him? You know how I feel about this basically. I don’t believe this is right. This guy is going to a homeless shelter.” Lieutenant Woods told him that he still had to arrest Person A. Respondent denied that he had yelled at Lieutenant Woods. Respondent testified, “I really don’t recall saying ‘this is bullshit.’” Respondent did hear Person A say “this is bullshit.” Respondent arrested Person A as ordered even though he was unhappy with the order. Respondent testified that he did not slam any doors. The next day, Respondent was assigned to an outdoor subway station within Transit District 32 on a freezing cold day as “punishment.”

On cross-examination, Respondent reiterated that, although he did not yell at “Woods” he was a “little upset.” Respondent testified that when he told “Woods” that he did not think that “this is right,” he meant that he did not think that what “Woods” was doing to Person A was ethically right. Respondent acknowledged that in the Activity Log entry he made regarding this incident he wrote the word “quota.” He asserted that Lieutenant Woods had said that “we will do TOMS until we get a body.” Respondent acknowledged that he had told Person A more than twice to sit up before Lieutenant Woods ordered him to remove Person A from the train.

FINDINGS AND ANALYSIS

The facts regarding this matter are largely not in dispute. Respondent does not dispute that he was upset with Lieutenant Woods because he felt strongly that Person A should have been allowed to leave the station and that Lieutenant Woods should not have ordered him to arrest Person A. Respondent’s ongoing contempt for Lieutenant Woods was

amply demonstrated during his testimony when he consistently referred to Lieutenant Woods as “Woods.”

I find Respondent Guilty of being discourteous to Lieutenant Woods because Lieutenant Woods’ claim that when he ordered Respondent to arrest Person A Respondent yelled “this is bullshit!” was directly corroborated by Sergeant Suero, who was not shown to have any reason to want to hurt Respondent at all, much less invent a false allegation that Respondent had loudly uttered a profanity in response to an order issued by a lieutenant. On the contrary, Sergeant Suero described Respondent as “a very decent individual.” Sergeant Suero’s testimony that he has never personally had any problems with Respondent was not refuted.

Where a supervisor’s complaint that a police officer was discourteous to him is corroborated by the testimony of a member who was present during the incident, their combined testimony constitutes substantial evidence sufficient to support a finding of guilt.¹ Moreover, Respondent did not categorically deny that he had uttered “this is bullshit,” rather he testified that he had no recollection of having said “this is bullshit.”

In reaching this finding I need not, and have not, relied on the statement that Person A made to Lieutenant Rose, which was offered as hearsay evidence at this trial. Person A admitted that he could not “remember much” because he “was pretty blitzed that night” and that he could not even recall the name of the officer who arrested him or the name of his “boss.”

As to that part of the charge that alleges that Respondent also acted in a discourteous manner to Lieutenant Woods by “slamming the door to the arrest processing area,” although Lieutenant Woods interpreted the sound that he heard when Respondent

¹ Sanders v. Safir, 284 AD2d 163, 726 NYS2d 844 (1st Dept 2001).

closed the door to the arrest processing room as a slamming action, Suero testified that he did not see Respondent slam any door and that he did not hear the door leading to the prisoner cells, or any other door, being slammed. Since Suero did not hear anything, it may be that Lieutenant Woods interpreted the door closing as a slam because, as a result of Respondent's "bullshit" remark, his senses were on high alert.

As a result, Respondent is found Guilty only of that part of the charge that alleges that he was discourteous to Lieutenant Francis Woods by yelling "this is bullshit!"

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on July 16, 1999. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Assistant Department Advocate recommended that Respondent forfeit 15 vacation days.

In Disciplinary Case No. 85777/09, signed on April 13, 2010, an 11 year police officer with no prior disciplinary record forfeited 30 vacation days and was placed on one year dismissal probation after he pleaded guilty to being discourteous to a supervisor. When he was reprimanded for improperly responding to a car accident, the officer stated, "This is bullshit! Fuck you and fuck this place. Fuck that scumbag in that office." However, in that case, the officer also pleaded guilty to having failed to properly respond to and investigate the car accident.

In Disciplinary Case No. 84968/09, signed on March 14, 2011, a 27-year sergeant forfeited 30 vacation days after he pleaded guilty to being discourteous to an on duty captain by telling him, "This is all bullshit. I'm the Department's domestic violence guy and I know this is all bullshit. I know what you fucking Captains do!" However, in that case, the sergeant had a prior disciplinary record and he also pleaded guilty to wrongfully engaging in a physical altercation with his [REDACTED]

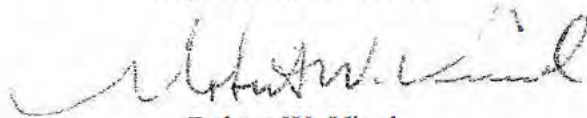
In Disciplinary Case No. 2009-68, signed on April 18, 2011, an 18-year detective with no prior disciplinary record forfeited ten vacation days for discourtesy. After the detective was instructed by his lieutenant to remove garbage, he stated "This is bullshit."

Finally, in Disciplinary Case No. 85951/09, signed on January 18, 2012, a detective forfeited ten vacation days after the detective was found guilty of having been discourteous to an on-duty captain. After learning that the Precinct Detective Squad's office was going to be used to interview a prisoner, the detective loudly told the captain, "You are not using the squad room. I am locking up and going to sleep." However, in that case, the detective did not use profanity in addressing the captain.

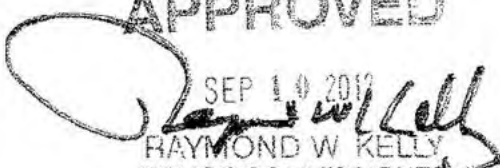
Here, Respondent is a 12-year member who has no prior formal disciplinary record who yelled "this is bullshit!" after Lieutenant Woods ordered him to arrest a transit recidivist. Respondent yelled this discourteous remark in the presence of a sergeant, other members of the service and the arrestee.

It is recommended that Respondent forfeit 20 vacation days.

Respectfully submitted,



Robert W. Vinal
Assistant Deputy Commissioner - Trials

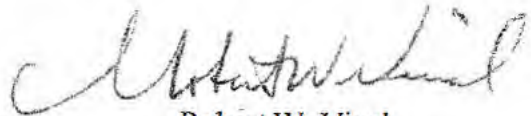
APPROVED
SEP 10 2012

RAYMOND W. KELLY
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner - Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER WILFRED MARTINEZ
TAX REGISTRY NO. 924703
DISCIPLINARY CASE NO. 2011 3967

The Respondent received an overall rating of 3.0 on his 2010 performance evaluation, 3.5 on his 2009 evaluation, and 3.5 on his 2008 evaluation. He has no medals. [REDACTED] He has no formal disciplinary record and no monitoring records.

For your consideration.



Robert W. Vinal
Assistant Deputy Commissioner - Trials